

No. 5 of 2025

VIRGIN ISLANDS
CRIMINAL JUSTICE (INTERNATIONAL COOPERATION)
(AMENDMENT) ACT, 2025

ARRANGEMENT OF SECTIONS

SECTION

1. Short title and commencement
2. Section 8 amended

I ASSENT

**(Sgd.) Daniel Pruce,
Governor.
26th March, 2025**

**VIRGIN ISLANDS
No. 5 of 2025**

AN ACT TO AMEND THE CRIMINAL JUSTICE (INTERNATIONAL COOPERATION) ACT, REVISED EDITION 2020, TO ADDRESS CERTAIN DEFICIENCIES IDENTIFIED IN THE CARIBBEAN FINANCIAL ACTION TASK FORCE (CFATF) FOURTH ROUND MUTUAL EVALUATION REPORT IN RELATION TO COMPLIANCE WITH INTERNATIONAL STANDARDS ON MONEY LAUNDERING AND TERRORIST FINANCING AND FOR RELATED MATTERS.

[Gazetted 3rd April, 2025]

ENACTED by the Legislature of the Virgin Islands as follows:

Short title and commencement

1. (1) This Act may be cited as the Criminal Justice (International Cooperation) (Amendment) Act, 2025.

(2) This Act shall come into force on such date as the Governor may, by Proclamation published in the *Gazette*, appoint.

Section 8 amended

2. The Criminal Justice (International Cooperation) Act, Revised Edition 2020, is amended in section 8 by repealing subsections (3) to (8) and substituting the following subsections:

“(3) The Attorney General shall respond to a request under subsection (1) in a timely manner and may direct, in writing, a police officer (“an Investigating Officer”) to do any of the following for the purpose of giving effect to such request

- (a) to conduct an investigation;
- (b) to interrogate and take statements from such persons as may appear to the Attorney General to be appropriate; and
- (c) to make copies of such documents, to take such extracts or samples, to conduct searches of persons if necessary, and to receive such other evidence as may appear to the Attorney General or the Investigating Officer to be appropriate.

(4) An Investigating Officer shall advise a person, prior to that person being interrogated, of that person's right

- (a) to be advised at his or her own expense by a legal practitioner of his or her choice;
- (b) to remain silent;
- (c) to, subject to subsection (5), not produce any document or thing.

(5) An Investigating Officer shall not have the power to compel

- (a) a person to answer any question;
- (b) a person who is not under arrest to attend at or remain in any place for the purpose of being interrogated; or
- (c) a person to produce any document or thing,

and the Investigating Officer shall not, unless authorised by a warrant under subsection (8), have the power to enter and search premises, search a person, or seize or take documents or other items without the consent of the owner or occupier of the premises or, in the case of a person, without the person's consent.

(6) A statement made to an Investigating Officer in the course of the exercise of Investigating Officer's functions under this section may only be used in evidence against the person making the statement

- (a) on a prosecution for an offence under subsection (13); or
- (b) on a prosecution for some other offence where in giving evidence the person makes a statement inconsistent with it.

(7) Where there are reasonable grounds for suspecting that there is on premises in the Virgin Islands or on a person evidence relating to an offence referred to in subsection (2), the Attorney General may, in writing, direct a police officer to apply to a Judge or a Magistrate for a warrant authorising the police officer to search the person or enter and search those premises and to seize any such evidence found there, other than items subject to legal privilege.

(8) If, on an application made by a police officer pursuant to subsection (7), a Judge or Magistrate is satisfied

- (a) as to the matters referred to in subsection (2); and
- (b) that there are reasonable grounds for suspecting that there is, on a person or on premises in the Virgin Islands, evidence relating to an offence referred to in subsection (2),

the Judge or Magistrate may issue a warrant authorising the police officer to enter and search those premises, search any person named or described in the warrant, and to seize any such evidence found, other than items subject to legal privilege.

(8A) A request for a warrant under this section shall be processed and executed in a timely manner.”.

Passed by the House of Assembly this 24th day of February, 2025.

(Sgd.) Corine N. George-Massicote,
Speaker.

(Sgd.) Bethsaida Smith-Hanley,
Clerk of the House of Assembly